



CHAPTER i.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to the Edinburgh Merchant Company Endowments.

[17th December 1942.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament: 26 Geo. 5. &
1 Edw. 8.
c. 52.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Edinburgh Merchant Company Endowments (Amendment) Order Confirmation Act 1942. Short title.

SCHEDULE.

EDINBURGH MERCHANT COMPANY ENDOWMENTS (AMENDMENT).

Provisional Order to amend the provisions of the Edinburgh Merchant Company Endowments Order 1909 so far as relating to William Watherston's Endowment.

WHEREAS section 76 of the Edinburgh Merchant Company Endowments Order 1909 (hereinafter called "the Endowments Order") sets forth the classes of persons eligible to be elected to the benefits of William Watherston's Endowment (hereinafter called "the endowment") :

And whereas owing to the death of all the persons nominated by the late William Watherston (the donor of the endowment) as first class donees and owing to the failure of the heirs of his body it is not possible to elect any further person as a first class donee of the endowment :

And whereas section 77 of the Endowments Order sets forth the income limits for persons (other than first class donees) eligible to hold a gift from the endowment :

And whereas section 79 of the said Order fixes the amounts of the gifts to be awarded to donees of the various classes :

And whereas the value of money in the year nineteen hundred and nine does not represent its value at the present day and it is now expedient that the said income limits should be raised and that the amounts so fixed should be increased :

And whereas the Merchant Company Charities Board incorporated by the Endowments Order as administrators of the endowment cannot on account of the restrictions contained in section 76 of the Endowments Order and the income qualification on election contained in section 77 thereof find a sufficient number of persons qualified for election to gifts from the endowment :

And whereas it is expedient that the terms of the Endowments Order should be varied so as to permit of the election of a sufficient number of persons to the benefits of the endowment :

And whereas it is expedient that sections 74 to 82 both inclusive of the Endowments Order should be repealed and re-enacted with amendments as provided in this Order :

And whereas it is expedient that the other provisions as contained in this Order should be made :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the said Act the Secretary of State orders as follows:—

1. This Order may be cited as the Edinburgh Merchant Company Short title.
Endowments (Amendment) Order 1942.

2. This Order shall commence and have effect on the date of the Commence-
passing of the Act confirming the same which date is hereinafter ment of
referred to as "the commencement of this Order." Order.

3. In this Order—

Interpretation.

"the Endowments Order" means the Edinburgh Merchant
Company Endowments Order 1909;

"the Charities Board" shall have the meaning assigned to it
in the Endowments Order;

"the endowment" means William Watherston's Endowment;

"the Merchant Company" means the Company of Merchants
of the City of Edinburgh as defined in the Endowments
Order.

4. After the commencement of this Order sections 74 to 82 both Repeal.
inclusive of the Endowments Order shall without prejudice to anything
done or suffered under the said sections be repealed and subject to
the other provisions of that Order the following provisions shall
apply in lieu thereof.

5. The endowment shall subject to the provisions of this Order Name of
and of the Endowments Order in so far as not repealed by this Order endowment.
continue to form a separate fund or trust and shall continue to be
called "William Watherston's Endowment."

6. The free income of the endowment shall after meeting the expenses Application
of management be applied in payment of annual gifts to persons of free
qualified under this Order to receive such gifts who are— income.

(a) Godfearing industrious peaceable and sober; and

(b) unable to earn their livelihood at their trade or business on
account of age or accident or bad health or general infirmity
or other circumstances not due to their own fault.

7.—(1) The classes of persons qualified to receive such gifts shall be— Classes of
donees.

(a) members of the Merchant Company over sixty years of age
not exceeding at one time ten in number who shall be
termed first class donees;

(b) any number of—

(a) house carpenters joiners lathers and lath splitters
over sixty years of age; and

(b) masons over fifty-two years of age;
who shall be termed second class donees; and

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- (c) any number of persons over sixty years of age being—
- (a) slaters ; or
 - (b) plumbers ; or
 - (c) plasterers and cement workers ; or
 - (d) paviors ; or
 - (e) electricians ; or
 - (f) bricklayers ; or
 - (g) glaziers ; or
 - (h) house painters ; or
 - (i) steel erectors ; or
 - (j) asphalters ; or
 - (k) tilers ; or
 - (l) heating and ventilating engineers ;

who shall be termed third class donees.

(2) The Charities Board shall in each case determine whether a person is qualified to receive a gift under this section and if so in which class.

(3) The respective qualifying ages shall be taken as at the first day of September of the year of election.

Ranking of
classes of
donees.

8.—(1) First class donees shall rank preferably on the funds of the endowment.

(2) Second class donees shall rank after first class donees.

(3) Third class donees shall rank after first and second class donees.

Conditions
of receipt
of gifts.

9. A person shall not be eligible to receive a gift from the endowment—

(1) if his annual income from all sources excluding any pension payable out of money voted by Parliament exceeds—

(a) as regards a first class donee one hundred pounds ;

(b) as regards a second class donee sixty pounds ; and

(c) as regards a third class donee fifty-two pounds ; or

(2) if he—

(a) is in receipt of outdoor relief from the public assistance authority ; or

(b) is maintained wholly or in part by the public assistance authority in a hospital or other institution provided by that authority :

Provided that where a donee has become ineligible by reason of the operation of paragraph (b) of subsection (2) of this section it shall be in the discretion of the Charities Board to restore him to the roll of donees when he has left such hospital or institution and to pay to him in respect of the half-year then current such sum as they may deem fit.

Power to
Charities
Board to
suspend
donees.

10.—(1) The Charities Board or any committee thereof to which it may delegate its authority shall have power to suspend on account of any cause which in the sole discretion of the Charities Board or any such committee justifies such action any donee of the endowment.

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(2) The Charities Board or any such committee may restore to the roll of donees any donee who has been suspended by the operation of this section and may pay to him in respect of the half-year then current such sum as they may deem fit.

11.—(1) A second and third class donee shall—

Special
qualification of
second and
third class
donees.

(a) at the date of his application for a gift be resident in the city of Edinburgh ;

(b) have been a good tradesman in receipt of the fair wages for a good tradesman ;

(c) have resided in the said city and worked at his trade there during a period of five consecutive years ;

(d) be a person whose wife and nearest relatives (that is to say his children father mother sisters or brothers) are not in a position to maintain him ; and

(e) continue to reside in the said city after his election as a donee.

(2) The Charities Board shall in each case determine whether a person possesses and fulfils the said qualifications and conditions.

12.—(1) Each gift from the endowment shall be payable in advance in half-yearly instalments according to the following scales :—

Amounts of
gifts.

(a) In the case of a first class donee an annual sum up to but not exceeding fifty pounds ;

(b) In the case of a second class donee an annual sum up to but not exceeding twenty-five pounds ; and

(c) In the case of a third class donee an annual sum up to but not exceeding twenty pounds.

(2) It shall be in the power of the Charities Board to raise to the amount under the appropriate paragraph of this section a gift awarded to any donee before the commencement of this Order.

13.—(1) Each gift shall be payable during the pleasure of the Charities Board.

Tenure
of gifts.

(2) Any gift may be paid either to the donee or to such other person as the Charities Board may from time to time determine to be applied for behoof of the donee.

14. The Charities Board shall annually on dates to be fixed by them elect such number of first second and third class donees as in the opinion of the Charities Board may be provided for out of the free income of the endowment.

Election of
donees.

15.—(1) The Charities Board shall on application issue to each applicant for a gift a form of application with a schedule appended containing particulars of the information certificates and documents required in support of the application.

Applications
for gifts.

(2) Every application shall be made on the form so supplied and shall be lodged with the Charities Board along with the required documents.

16. All costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Charities Board out of the revenues of the endowment.

Costs of
Order.

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